

7/1/26, shows a First Legal Invoice for charges related to a certificate of non-appearance, with the charges totaling \$1,351.25. In support of Plaintiffs' Reply, counsel for Plaintiffs declares, "According to my email records, I noted that, on April 14, 2022, at 9:29 am, I sent an email to Mr. Bui to the effect that no link had been received from his office in order to access the remote deposition that had been set for April 14, 2022. I also noted that Dr. Vaidya had cleared his calendar for the deposition. I also observed that the deposition notice required at least 5 days to provide the link, and because the link was not actually sent, Dr. Vaidya was returning to his clinic." (Boros Decl., ¶ 2.) "The 'no-show' of April 14, 2022 was not due to any act, oversight, or omission on my part." (Boros Decl., ¶ 4.)

Based on the evidence presented, the court taxes \$1,351.25 for a claimed deposition no-show on 4/14/22.

Filing Fees for Separate Case

Also in their reply papers, Plaintiffs argue that Defendants improperly included \$1,576.79 worth of charges for filings in the San Bernadino County Superior Court.

Other than the depositions costs, Defendants claimed \$1,656.55 for fees for electronic filing or service, \$380 for filing and motion fees and \$150 for jury fees.

Pages 5, 8, 10, 15, 23, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, and 47 of Defendants' Exhibit List are for Nationwide Legal LLC filing invoices for documents apparently filed in San Bernadino County.

Based on the evidence presented, the court taxes \$1,576.79 from the cost memorandum for filings apparently made in another case.

Moving Defendants to give notice.

4	CA-MRE Holdings, LLC vs. Sierra Creek, LLC	<u>Motion for Leave (re Third Amended Complaint)</u> No Tentative. The parties should however be prepared at the hearing to discuss the procedural history of this action, including the following: Over the last five+ years, Plaintiff has amended the complaint numerous times and trial has been continued numerous times. Specifically, Plaintiff CA-MRE HOLDINGS, LLC filed this action on 4/27/21. Plaintiff filed a First Amended Complaint on 9/1/21 and shortly thereafter, the original trial was scheduled for 9/12/22. After the court sustained a demurrer with leave to amend, Plaintiff filed a Second Amended Complaint on 3/14/22. Pursuant to Plaintiff’s Ex Parte Application (and due to a cross-complaint filed on 4/26/22), trial was continued to 3/10/23. Pursuant to stipulations, trial was thereafter continued to 3/11/24, and then to 10/14/24, and then to 7/7/25, and then to 12/8/25, and then to 4/20/26. When continuing the trial from 12/8/25 to 4/20/26, the court stated, “<u>No</u> further continuances”. (ROA 202.) Nonetheless, the court continued the trial yet again, to 8/31/26 based upon the stipulation of the parties and the court’s congested calendar. (ROA 248.) Trial is currently set for 8/31/26, the discovery deadline is quickly approaching, and Defendants have stipulated to continue the 5-year rule to 10/27/26. Now with trial quickly approaching (again) and despite that the action is more than five years old, Plaintiff seeks leave to file a Third Amended Complaint that would among other things, “add[] a direct breach of contract claim by CA-MRE against Sierra Creek, LLC for breach of a 2018 Assignment agreement (attached to the proposed TAC as Exhibit C); add[] an accounting claim; and revise[] the fraud claims.” (Not. of Mot, at p. 2, lines 8-16.)
5	Stern vs. Comdirect, Inc.	<u>Motion for Leave (re Cross Complaint)</u> The court GRANTS Defendants COMDIRECT, INC., ZACHARY LINDEN, and BLAKE BENJAMIN’S unopposed motion for